

On January 7, 2026, Petitioner filed a Request for Order (RFO) seeking orders for a vocational evaluation, a seek-work order, and imputation of income. All required documents were electronically served on January 12, 2026.

On March 12th, Respondent filed his Responsive Declaration to Request for Order. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made March 6th the last day for filing the Responsive Declaration to Request for Order. Therefore, it is late filed and has not been considered by the court.

Petitioner asks that Respondent be ordered to undergo a vocational evaluation pursuant to Family Code § 4331, at Petitioner’s expense. She further requests Respondent be ordered to seek work consistent with his skills and abilities as established by the vocational evaluation, or that Respondent be imputed with earnings pursuant to the findings and report of the vocational evaluator.

The request for a vocational evaluation is granted. Respondent is ordered to participate in a vocational evaluation with an evaluator chosen by Petitioner. Petitioner is to pay the cost of the valuation, subject to reallocation at trial.

Upon completion of the vocational evaluation, Respondent is ordered to seek work consistent with his earning ability and capacity as found by the vocational evaluator. Respondent is ordered to comply with any job search parameters as set by the vocational evaluator.

The request to impute income is denied as the court does not find this request to be ripe given that there is no pending request for support being made by either party. The request to impute income is denied without prejudice.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE REQUEST FOR A VOCATIONAL EVALUATION IS GRANTED. RESPONDENT IS ORDERED TO PARTICIPATE IN A VOCATIONAL EVALUATION WITH AN

EVALUATOR CHOSEN BY PETITIONER. PETITIONER IS TO PAY THE COST OF THE VALUATION, SUBJECT TO REALLOCATION AT TRIAL.

UPON COMPLETION OF THE VOCATIONAL EVALUATION, RESPONDENT IS ORDERED TO SEEK WORK CONSISTENT WITH HIS EARNING ABILITY AND CAPACITY AS FOUND BY THE VOCATIONAL EVALUATOR. RESPONDENT IS ORDERED TO COMPLY WITH ANY JOB SEARCH PARAMETERS AS SET BY THE VOCATIONAL EVALUATOR.

THE REQUEST TO IMPUTE INCOME IS DENIED AS THE COURT DOES NOT FIND THIS REQUEST TO BE RIPE GIVEN THAT THERE IS NO PENDING REQUEST FOR SUPPORT BEING MADE BY EITHER PARTY. THE REQUEST TO IMPUTE INCOME IS DENIED WITHOUT PREJUDICE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.